The figurative reason was that this foreshadowed the fact that after the three states of the Law (the first lasting from Abraham to David, the second, until they were carried away to Babylon, the third until the time of Christ), the Fruit of the Law, i.e. Christ, was to be offered to God. Or again, that we must mistrust our first efforts, on account of their imperfection.

Reply to Objection 6: It is said of a man in Ecclus. 19:27, that "the attire of the body . . . " shows "what he is." Hence the Lord wished His people to be distinguished from other nations, not only by the sign of the circumcision, which was in the flesh, but also by a certain difference of attire. Wherefore they were forbidden to wear garments woven of woolen and linen together, and for a woman to be clothed with man's apparel, or vice versa, for two reasons. First, to avoid idolatrous worship. Because the Gentiles, in their religious rites, used garments of this sort, made of various materials. Moreover in the worship of Mars, women put on men's armor; while, conversely, in the worship of Venus men donned women's attire. The second reason was to preserve them from lust: because the employment of various materials in the making of garments signified inordinate union of sexes, while the use of male attire by a woman, or vice versa, has an incentive to evil desires, and offers an occasion of lust. The figurative reason is that the prohibition of wearing a garment woven of woolen and linen signified that it was forbidden to unite the simplicity of innocence, denoted by wool, with the duplicity of malice, betokened by linen. It also signifies that woman is forbidden to presume to teach, or perform other duties of men: or that man should not adopt the effeminate manners of a woman.

Reply to Objection 7: As Jerome says on Mat. 23:6, "the Lord commanded them to make violet-colored fringes in the four corners of their garments, so that the Israelites might be distinguished from other nations." Hence, in this way, they professed to be Jews: and consequently the very sight of this sign reminded them of their law.

When we read: "Thou shalt bind them on thy hand, and they shall be ever before thy eyes [Vulg.: 'they shall be and shall move between thy eyes'], the Pharisees gave a false interpretation to these words, and wrote the decalogue of Moses on a parchment, and tied it on their foreheads like a wreath, so that it moved in front of their eyes": whereas the intention of the Lord in giving this commandment was that they should be bound in their hands, i.e. in their works; and that they should be before their eyes, i.e. in their thoughts. The violet-colored fillets which were inserted in their cloaks signify the godly intention which should accompany our every deed. It may, however, be said that, because they were a carnal-minded and stiff-necked people, it was necessary for them to be stirred by these sensible things to the observance of the Law.

Reply to Objection 8: Affection in man is twofold: it may be an affection of reason, or it may be an affection of passion. If a man's affection be one of reason, it matters not how man behaves to animals, because God has subjected all things to man's power, according to Ps. 8:8: "Thou hast subjected all things under his feet": and it is in this sense that the Apostle says that "God has no care for oxen"; because God does not ask of man what he does with oxen or other animals.

But if man's affection be one of passion, then it is moved also in regard to other animals: for since the passion of pity is caused by the afflictions of others; and since it happens that even irrational animals are sensible to pain, it is possible for the affection of pity to arise in a man with regard to the sufferings of animals. Now it is evident that if a man practice a pitiful affection for animals, he is all the more disposed to take pity on his fellow-men: wherefore it is written (Prov. 11:10): "The just regardeth the lives of his beasts: but the bowels of the wicked are cruel." Consequently the Lord, in order to inculcate pity to the Jewish people, who were prone to cruelty, wished them to

practice pity even with regard to dumb animals, and forbade them to do certain things savoring of cruelty to animals. Hence He prohibited them to "boil a kid in the milk of its dam"; and to "muzzle the ox that treadeth out the corn"; and to slay "the dam with her young." It may, nevertheless, be also said that these prohibitions were made in hatred of idolatry. For the Egyptians held it to be wicked to allow the ox to eat of the grain while threshing the corn. Moreover certain sorcerers were wont to ensnare the mother bird with her young during incubation, and to employ them for the purpose of securing fruitfulness and good luck in bringing up children: also because it was held to be a good omen to find the mother sitting on her young.

As to the mingling of animals of divers species, the literal reason may have been threefold. The first was to show detestation for the idolatry of the Egyptians, who employed various mixtures in worshipping the planets, which produce various effects, and on various kinds of things according to their various conjunctions. The second reason was in condemnation of unnatural sins. The third reason was the entire removal of all occasions of concupiscence. Because animals of different species do not easily breed, unless this be brought about by man; and movements of lust are aroused by seeing such things. Wherefore in the Jewish traditions we find it prescribed as stated by Rabbi Moses that men shall turn away their eyes from such sights.

The figurative reason for these things is that the necessities of life should not be withdrawn from the ox that treadeth the corn, i.e. from the preacher bearing the sheaves of doctrine, as the Apostle states (1 Cor. 9:4, seqq.). Again, we should not take the dam with her young: because in certain things we have to keep the spiritual senses, i.e. the offspring, and set aside the observance of the letter, i.e. the mother, for instance, in all the ceremonies of the Law. It is also forbidden that beast of burden, i.e. any of the common people, should be allowed to engender, i.e. to have any connection, with animals of another kind, i.e. with Gentiles or Jews.

Reply to Objection 9: All these minglings were forbidden in agriculture; literally, in detestation of idolatry. For the Egyptians in worshipping the stars employed various combinations of seeds, animals and garments, in order to represent the various connections of the stars. Or else all these minglings were forbidden in detestation of the unnatural vice.

They have, however, a figurative reason. For the prohibition: "Thou shalt not sow thy field with different seeds," is to be understood, in the spiritual sense, of the prohibition to sow strange doctrine in the Church, which is a spiritual vineyard. Likewise "the field," i.e. the Church, must not be sown "with different seeds," i.e. with Catholic and heretical doctrines. Neither is it allowed to plough "with an ox and an ass together"; thus a fool should not accompany a wise man in preaching, for one would hinder the other.

Reply to Objection 10: [*The Reply to the Tenth Objection is lacking in the codices. The solution given here is found in some editions, and was supplied by Nicolai.] Silver and gold were reasonably forbidden (Dt. 7) not as though they were not subject to the power of man, but because, like the idols themselves, all materials out of which idols were made, were anathematized as hateful in God's sight. This is clear from the same chapter, where we read further on (Dt. 7:26): "Neither shalt thou bring anything of the idol into thy house, lest thou become an anathema like it." Another reason was lest, by taking silver and gold, they should be led by avarice into idolatry to which the Jews were inclined. The other precept (Dt. 23) about covering up excretions, was just and becoming, both for the sake of bodily cleanliness; and in order to keep the air wholesome; and by reason of the respect due to the tabernacle of the covenant which stood in the midst of the camp, wherein the Lord was said to dwell; as is clearly set forth in the same passage, where after expressing the

command, the reason thereof is at once added, to wit: "For the Lord thy God walketh in the midst of thy camp, to deliver thee, and to give up thy enemies to thee, and let thy camp be holy [i.e. clean], and let no uncleanness appear therein." The figurative reason for this precept, according to Gregory (Moral. xxxi), is that sins which are the fetid excretions of the mind should be covered over by repentance, that we may become acceptable to God, according to Ps. 31:1: "Blessed are they whose iniquities are forgiven, and whose sins are covered." Or else according to a gloss, that we should recognize the unhappy condition of human nature, and humbly cover and purify the stains of a puffed-up and proud spirit in the deep furrow of self-examination.

Reply to Objection 11: Sorcerers and idolatrous priests made use, in their rites, of the bones and flesh of dead men. Wherefore, in order to extirpate the customs of idolatrous worship, the Lord commanded that the priests of inferior degree, who at fixed times served in the temple, should not "incur an uncleanness at the death" of anyone except of those who were closely related to them, viz. their father or mother, and others thus near of kin to them. But the high-priest had always to be ready for the service of the sanctuary; wherefore he was absolutely forbidden to approach the dead, however nearly related to him. They were also forbidden to marry a "harlot" or "one that has been put away," or any other than a virgin: both on account of the reverence due to the priesthood, the honor of which would seem to be tarnished by such a marriage: and for the sake of the children who would be disgraced by the mother's shame: which was most of all to be avoided when the priestly dignity was passed on from father to son. Again, they were commanded to shave neither head nor beard, and not to make incisions in their flesh, in order to exclude the rites of idolatry. For the priests of the Gentiles shaved both head and beard, wherefore it is written (Bar 6:30): "Priests sit in their temples having their garments rent, and their heads and beards shaven." Moreover, in worshipping their idols "they cut themselves with knives and lancets" (3 Kings 18:28). For this reason the priests of the Old Law were commanded to do the contrary.

The spiritual reason for these things is that priests should be entirely free from dead works, i.e. sins. And they should not shave their heads, i.e. set wisdom aside; nor should they shave their beards, i.e. set aside the perfection of wisdom; nor rend their garments or cut their flesh, i.e. they should not incur the sin of schism.

OF THE DURATION OF THE CEREMONIAL PRECEPTS (FOUR ARTICLES)

We must now consider the duration of the ceremonial precepts: under which head there are four points of inquiry:

(1) Whether the ceremonial precepts were in existence before the Law?

(2) Whether at the time of the Law the ceremonies of the Old Law had any power of justification?

(3) Whether they ceased at the coming of Christ?

(4) Whether it is a mortal sin to observe them after the coming of Christ?

Whether the ceremonies of the Law were in existence before the Law?

Objection 1: It would seem that the ceremonies of the Law were in existence before the Law. For sacrifices and holocausts were ceremonies of the Old Law, as stated above (Q[101], A[4]). But sacrifices and holocausts preceded the Law: for it is written (Gn. 4:3,4) that "Cain offered, of the

fruits of the earth, gifts to the Lord," and that "Abel offered of the firstlings of his flock, and of their fat." Noe also "offered holocausts" to the Lord (Gn. 18:20), and Abraham did in like manner (Gn. 22:13). Therefore the ceremonies of the Old Law preceded the Law.

Objection 2: Further, the erecting and consecrating of the altar were part of the ceremonies relating to holy things. But these preceded the Law. For we read (Gn. 13:18) that "Abraham . . . built . . . an altar to the Lord"; and (Gn. 28:18) that "Jacob . . . took the stone . . . and set it up for a title, pouring oil upon the top of it." Therefore the legal ceremonies preceded the Law.

Objection 3: Further, the first of the legal sacraments seems to have been circumcision. But circumcision preceded the Law, as appears from Gn. 17. In like manner the priesthood preceded the Law; for it is written (Gn. 14:18) that "Melchisedech . . . was the priest of the most high God." Therefore the sacramental ceremonies preceded the Law.

Objection 4: Further, the distinction of clean from unclean animals belongs to the ceremonies of observances, as stated above (Q[100], 2, A[6], ad 1). But this distinction preceded the Law; for it is written (Gn. 7:2,3): "Of all clean beasts take seven and seven . . . but of the beasts that are unclean, two and two." Therefore the legal ceremonies preceded the Law.

On the contrary, It is written (Dt. 6:1): "These are the precepts and ceremonies . . . which the Lord your God commanded that I should teach you." But they would not have needed to be taught about these things, if the aforesaid ceremonies had been already in existence. Therefore the legal ceremonies did not precede the Law.

I answer that, As is clear from what has been said (Q[101], A[2]; Q[102] , A[2]), the legal ceremonies were ordained for a double purpose; the worship of God, and the foreshadowing of Christ. Now whoever worships God must needs worship Him by means of certain fixed things pertaining to external worship. But the fixing of the divine worship belongs to the ceremonies; just as the determining of our relations with our neighbor is a matter determined by the judicial precepts, as stated above (Q[99], A[4]). Consequently, as among men in general there were certain judicial precepts, not indeed established by Divine authority, but ordained by human reason; so also there were some ceremonies fixed, not by the authority of any law, but according to the will and devotion of those that worship God. Since, however, even before the Law some of the leading men were gifted with the spirit of prophecy, it is to be believed that a heavenly instinct, like a private law, prompted them to worship God in a certain definite way, which would be both in keeping with the interior worship, and a suitable token of Christ's mysteries, which were foreshadowed also by other things that they did, according to 1 Cor. 10:11: "All . . . things happened to them in figure." Therefore there were some ceremonies before the Law, but they were not legal ceremonies, because they were not as yet established by legislation.

Reply to Objection 1: The patriarchs offered up these oblations, sacrifices and holocausts previously to the Law, out of a certain devotion of their own will, according as it seemed proper to them to offer up in honor of God those things which they had received from Him, and thus to testify that they worshipped God Who is the beginning and end of all.

Reply to Objection 2: They also established certain sacred things, because they thought that the honor due to God demanded that certain places should be set apart from others for the purpose of divine worship.

Reply to Objection 3: The sacrament of circumcision was established by command of God before the Law. Hence it cannot be called a sacrament of the Law as though it were an institution of the Law, but only as an observance included in the Law. Hence Our Lord said (Jn. 7:20) that

circumcision was "not of Moses, but of his fathers." Again, among those who worshipped God, the priesthood was in existence before the Law by human appointment, for the Law allotted the priestly dignity to the firstborn.

Reply to Objection 4: The distinction of clean from unclean animals was in vogue before the Law, not with regard to eating them, since it is written (Gn. 9:3): "Everything that moveth and liveth shall be meat for you": but only as to the offering of sacrifices because they used only certain animals for that purpose. If, however, they did make any distinction in regard to eating; it was not that it was considered illegal to eat such animals, since this was not forbidden by any law, but from dislike or custom: thus even now we see that certain foods are looked upon with disgust in some countries, while people partake of them in others.

Whether, at the time of the Law, the ceremonies of the Old Law had any power of justification?

Objection 1: It would seem that the ceremonies of the Old Law had the power of justification at the time of the Law. Because expiation from sin and consecration pertains to justification. But it is written (Ex. 39:21) that the priests and their apparel were consecrated by the sprinkling of blood and the anointing of oil; and (Lev. 16:16) that, by sprinkling the blood of the calf, the priest expiated "the sanctuary from the uncleanness of the children of Israel, and from their transgressions and . . . their sins." Therefore the ceremonies of the Old Law had the power of justification.

Objection 2: Further, that by which man pleases God pertains to justification, according to Ps. 10:8: "The Lord is just and hath loved justice." But some pleased God by means of ceremonies, according to Lev. 10:19: "How could I . . . please the Lord in the ceremonies, having a sorrowful heart?" Therefore the ceremonies of the Old Law had the power of justification.

Objection 3: Further, things relating to the divine worship regard the soul rather than the body, according to Ps. 18:8: "The Law of the Lord is unspotted, converting souls." But the leper was cleansed by means of the ceremonies of the Old Law, as stated in Lev. 14. Much more therefore could the ceremonies of the Old Law cleanse the soul by justifying it.

On the contrary, The Apostle says (Gal. 2) [*The first words of the quotation are from 3:21: St. Thomas probably quoting from memory, substituted them for 2:21, which runs thus: 'If justice be by the Law, then Christ died in vain.']: "If there had been a law given which could justify [Vulg.: 'give life'], Christ died in vain," i.e. without cause. But this is inadmissible. Therefore the ceremonies of the Old Law did not confer justice.

I answer that, As stated above (Q[102], A[5], ad 4), a twofold uncleanness was distinguished in the Old Law. One was spiritual and is the uncleanness of sin. The other was corporal, which rendered a man unfit for divine worship; thus a leper, or anyone that touched carrion, was said to be unclean: and thus uncleanness was nothing but a kind of irregularity. From this uncleanness, then, the ceremonies of the Old Law had the power to cleanse: because they were ordered by the Law to be employed as remedies for the removal of the aforesaid uncleannesses which were contracted in consequence of the prescription of the Law. Hence the Apostle says (Heb. 9:13) that "the blood of goats and of oxen, and the ashes of a heifer, being sprinkled, sanctify such as are defiled, to the cleansing of the flesh." And just as this uncleanness which was washed away by such like ceremonies, affected the flesh rather than the soul, so also the ceremonies themselves are

called by the Apostle shortly before (Heb. 9:10) justices of the flesh: "justices of the flesh," says he, "being laid on them until the time of correction."

On the other hand, they had no power of cleansing from uncleanness of the soul, i.e. from the uncleanness of sin. The reason of this was that at no time could there be expiation from sin, except through Christ, "Who taketh away the sins [Vulg.: 'sin'] of the world" (Jn. 1:29). And since the mystery of Christ's Incarnation and Passion had not yet really taken place, those ceremonies of the Old Law could not really contain in themselves a power flowing from Christ already incarnate and crucified, such as the sacraments of the New Law contain. Consequently they could not cleanse from sin: thus the Apostle says (Heb. 10:4) that "it is impossible that with the blood of oxen and goats sin should be taken away"; and for this reason he calls them (Gal. 4:9) "weak and needy elements": weak indeed, because they cannot take away sin; but this weakness results from their being needy, i.e. from the fact that they do not contain grace within themselves.

However, it was possible at the time of the Law, for the minds of the faithful, to be united by faith to Christ incarnate and crucified; so that they were justified by faith in Christ: of which faith the observance of these ceremonies was a sort of profession, inasmuch as they foreshadowed Christ. Hence in the Old Law certain sacrifices were offered up for sins, not as though the sacrifices themselves washed sins away, but because they were professions of faith which cleansed from sin. In fact, the Law itself implies this in the terms employed: for it is written (Lev. 4:26; 5:16) that in offering the sacrifice for sin "the priest shall pray for him . . . and it shall be forgiven him," as though the sin were forgiven, not in virtue of the sacrifices, but through the faith and devotion of those who offered them. It must be observed, however, that the very fact that the ceremonies of the Old Law washed away uncleanness of the body, was a figure of that expiation from sins which was effected by Christ.

It is therefore evident that under the state of the Old Law the ceremonies had no power of justification.

Reply to Objection 1: That sanctification of priests and their sons, and of their apparel or of anything else belonging to them, by sprinkling them with blood, had no other effect but to appoint them to the divine worship, and to remove impediments from them, "to the cleansing of the flesh," as the Apostle states (Heb. 9:13) in token of that sanctification whereby "Jesus" sanctified "the people by His own blood" (Heb. 13:12). Moreover, the expiation must be understood as referring to the removal of these bodily uncleannesses, not to the forgiveness of sin. Hence even the sanctuary which could not be the subject of sin is stated to be expiated.

Reply to Objection 2: The priests pleased God in the ceremonies by their obedience and devotion, and by their faith in the reality foreshadowed; not by reason of the things considered in themselves.

Reply to Objection 3: Those ceremonies which were prescribed in the cleansing of a leper, were not ordained for the purpose of taking away the defilement of leprosy. This is clear from the fact that these ceremonies were not applied to a man until he was already healed: hence it is written (Lev. 14:3,4) that the priest, "going out of the camp, when he shall find that the leprosy is cleansed, shall command him that is to be purified to offer," etc.; whence it is evident that the priest was appointed the judge of leprosy, not before, but after cleansing. But these ceremonies were employed for the purpose of taking away the uncleanness of irregularity. They do say, however, that if a priest were to err in his judgment, the leper would be cleansed miraculously by the power of God, but not in virtue of the sacrifice. Thus also it was by miracle that the thigh of the adulterous woman

rotted, when she had drunk the water "on which" the priest had "heaped curses," as stated in Num. 5:19-27.

Whether the ceremonies of the Old Law ceased at the coming of Christ?

Objection 1: It would seem that the ceremonies of the Old Law did not cease at the coming of Christ. For it is written (Bar 4:1): "This is the book of the commandments of God, and the law that is for ever." But the legal ceremonies were part of the Law. Therefore the legal ceremonies were to last for ever.

Objection 2: Further, the offering made by a leper after being cleansed was a ceremony of the Law. But the Gospel commands the leper, who has been cleansed, to make this offering (Mat. 8:4). Therefore the ceremonies of the Old Law did not cease at Christ's coming.

Objection 3: Further, as long as the cause remains, the effect remains. But the ceremonies of the Old Law had certain reasonable causes, inasmuch as they were ordained to the worship of God, besides the fact that they were intended to be figures of Christ. Therefore the ceremonies of the Old Law should not have ceased.

Objection 4: Further, circumcision was instituted as a sign of Abraham's faith: the observance of the sabbath, to recall the blessing of creation: and other solemnities, in memory of other Divine favors, as state above (Q[102], A[4], ad 10; A[5], ad 1). But Abraham's faith is ever to be imitated even by us: and the blessing of creation and other Divine favors should never be forgotten. Therefore at least circumcision and the other legal solemnities should not have ceased.

On the contrary, The Apostle says (Col. 2:16,17): "Let no man . . . judge you in meat or in drink, or in respect of a festival day, or of the new moon, or of the sabbaths, which are a shadow of things to come": and (Heb. 8:13): "In saying a new (testament), he hath made the former old: and that which decayeth and groweth old, is near its end."

I answer that, All the ceremonial precepts of the Old Law were ordained to the worship of God as stated above (Q[101], AA[1],2). Now external worship should be in proportion to the internal worship, which consists in faith, hope and charity. Consequently exterior worship had to be subject to variations according to the variations in the internal worship, in which a threefold state may be distinguished. One state was in respect of faith and hope, both in heavenly goods, and in the means of obtaining them---in both of these considered as things to come. Such was the state of faith and hope in the Old Law. Another state of interior worship is that in which we have faith and hope in heavenly goods as things to come; but in the means of obtaining heavenly goods, as in things present or past. Such is the state of the New Law. The third state is that in which both are possessed as present; wherein nothing is believed in as lacking, nothing hoped for as being yet to come. Such is the state of the Blessed.

In this state of the Blessed, then, nothing in regard to worship of God will be figurative; there will be naught but "thanksgiving and voice of praise" (Is. 51:3). Hence it is written concerning the city of the Blessed (Apoc. 21:22): "I saw no temple therein: for the Lord God Almighty is the temple thereof, and the Lamb." Proportionately, therefore, the ceremonies of the first-mentioned state which foreshadowed the second and third states, had need to cease at the advent of the second state; and other ceremonies had to be introduced which would be in keeping with the state of divine

worship for that particular time, wherein heavenly goods are a thing of the future, but the Divine favors whereby we obtain the heavenly boons are a thing of the present.

Reply to Objection 1: The Old Law is said to be "for ever" simply and absolutely, as regards its moral precepts; but as regards the ceremonial precepts it lasts for even in respect of the reality which those ceremonies foreshadowed.

Reply to Objection 2: The mystery of the redemption of the human race was fulfilled in Christ's Passion: hence Our Lord said then: "It is consummated" (Jn. 19:30). Consequently the prescriptions of the Law must have ceased then altogether through their reality being fulfilled. As a sign of this, we read that at the Passion of Christ "the veil of the temple was rent" (Mat. 27:51). Hence, before Christ's Passion, while Christ was preaching and working miracles, the Law and the Gospel were concurrent, since the mystery of Christ had already begun, but was not as yet consummated. And for this reason Our Lord, before His Passion, commanded the leper to observe the legal ceremonies.

Reply to Objection 3: The literal reasons already given (Q[102]) for the ceremonies refer to the divine worship, which was founded on faith in that which was to come. Hence, at the advent of Him Who was to come, both that worship ceased, and all the reasons referring thereto.

Reply to Objection 4: The faith of Abraham was commended in that he believed in God's promise concerning his seed to come, in which all nations were to blessed. Wherefore, as long as this seed was yet to come, it was necessary to make profession of Abraham's faith by means of circumcision. But now that it is consummated, the same thing needs to be declared by means of another sign, viz. Baptism, which, in this respect, took the place of circumcision, according to the saying of the Apostle (Col. 2:11, 12): "You are circumcised with circumcision not made by hand, in despoiling of the body of the flesh, but in the circumcision of Christ, buried with Him in Baptism."

As to the sabbath, which was a sign recalling the first creation, its place is taken by the "Lord's Day," which recalls the beginning of the new creature in the Resurrection of Christ. In like manner other solemnities of the Old Law are supplanted by new solemnities: because the blessings vouchsafed to that people, foreshadowed the favors granted us by Christ. Hence the feast of the Passover gave place to the feast of Christ's Passion and Resurrection: the feast of Pentecost when the Old Law was given, to the feast of Pentecost on which was given the Law of the living spirit: the feast of the New Moon, to Lady Day, when appeared the first rays of the sun, i.e. Christ, by the fulness of grace: the feast of Trumpets, to the feasts of the Apostles: the feast of Expiation, to the feasts of Martyrs and Confessors: the feast of Tabernacles, to the feast of the Church Dedication: the feast of the Assembly and Collection, to feast of the Angels, or else to the feast of All Hallows.

Whether since Christ's Passion the legal ceremonies can be observed without committing mortal sin?

Objection 1: It would seem that since Christ's Passion the legal ceremonies can be observed without committing mortal sin. For we must not believe that the apostles committed mortal sin after receiving the Holy Ghost: since by His fulness they were "endued with power from on high" (Lk. 24:49). But the apostles observed the legal ceremonies after the coming of the Holy Ghost: for it is stated (Acts 16:3) that Paul circumcised Timothy: and (Acts 21:26) that Paul, at the advice of James, "took the men, and . . . being purified with them, entered into the temple, giving notice of the accomplishment of the days of purification, until an oblation should be offered for every one

of them." Therefore the legal ceremonies can be observed since the Passion of Christ without mortal sin.

Objection 2: Further, one of the legal ceremonies consisted in shunning the fellowship of Gentiles. But the first Pastor of the Church complied with this observance; for it is stated (Gal. 2:12) that, "when" certain men "had come" to Antioch, Peter "withdrew and separated himself" from the Gentiles. Therefore the legal ceremonies can be observed since Christ's Passion without committing mortal sin.

Objection 3: Further, the commands of the apostles did not lead men into sin. But it was commanded by apostolic decree that the Gentiles should observe certain ceremonies of the Law: for it is written (Acts 15:28,29): "It hath seemed good to the Holy Ghost and to us, to lay no further burden upon you than these necessary things: that you abstain from things sacrificed to idols, and from blood, and from things strangled, and from fornication." Therefore the legal ceremonies can be observed since Christ's Passion without committing mortal sin.

On the contrary, The Apostle says (Gal. 5:2): "If you be circumcised, Christ shall profit you nothing." But nothing save mortal sin hinders us from receiving Christ's fruit. Therefore since Christ's Passion it is a mortal sin to be circumcised, or to observe the other legal ceremonies.

I answer that, All ceremonies are professions of faith, in which the interior worship of God consists. Now man can make profession of his inward faith, by deeds as well as by words: and in either profession, if he make a false declaration, he sins mortally. Now, though our faith in Christ is the same as that of the fathers of old; yet, since they came before Christ, whereas we come after Him, the same faith is expressed in different words, by us and by them. For by them was it said: "Behold a virgin shall conceive and bear a son," where the verbs are in the future tense: whereas we express the same by means of verbs in the past tense, and say that she "conceived and bore." In like manner the ceremonies of the Old Law betokened Christ as having yet to be born and to suffer: whereas our sacraments signify Him as already born and having suffered. Consequently, just as it would be a mortal sin now for anyone, in making a profession of faith, to say that Christ is yet to be born, which the fathers of old said devoutly and truthfully; so too it would be a mortal sin now to observe those ceremonies which the fathers of old fulfilled with devotion and fidelity. Such is the teaching Augustine (Contra Faust. xix, 16), who says: "It is no longer promised that He shall be born, shall suffer and rise again, truths of which their sacraments were a kind of image: but it is declared that He is already born, has suffered and risen again; of which our sacraments, in which Christians share, are the actual representation."

Reply to Objection 1: On this point there seems to have been a difference of opinion between Jerome and Augustine. For Jerome (Super Galat. ii, 11, seqq.) distinguished two periods of time. One was the time previous to Christ's Passion, during which the legal ceremonies were neither dead, since they were obligatory, and did expiate in their own fashion; nor deadly, because it was not sinful to observe them. But immediately after Christ's Passion they began to be not only dead, so as no longer to be either effectual or binding; but also deadly, so that whoever observed them was guilty of mortal sin. Hence he maintained that after the Passion the apostles never observed the legal ceremonies in real earnest; but only by a kind of pious pretense, lest, to wit, they should scandalize the Jews and hinder their conversion. This pretense, however, is to be understood, not as though they did not in reality perform those actions, but in the sense that they performed them without the mind to observe the ceremonies of the Law: thus a man might cut away his foreskin for health's sake, not with the intention of observing legal circumcision.

But since it seems unbecoming that the apostles, in order to avoid scandal, should have hidden things pertaining to the truth of life and doctrine, and that they should have made use of pretense, in things pertaining to the salvation of the faithful; therefore Augustine (Epist. lxxxii) more fittingly distinguished three periods of time. One was the time that preceded the Passion of Christ, during which the legal ceremonies were neither deadly nor dead: another period was after the publication of the Gospel, during which the legal ceremonies are both dead and deadly. The third is a middle period, viz. from the Passion of Christ until the publication of the Gospel, during which the legal ceremonies were dead indeed, because they had neither effect nor binding force; but were not deadly, because it was lawful for the Jewish converts to Christianity to observe them, provided they did not put their trust in them so as to hold them to be necessary unto salvation, as though faith in Christ could not justify without the legal observances. On the other hand, there was no reason why those who were converted from heathendom to Christianity should observe them. Hence Paul circumcised Timothy, who was born of a Jewish mother; but was unwilling to circumcise Titus, who was of heathen nationality.

The reason why the Holy Ghost did not wish the converted Jews to be debarred at once from observing the legal ceremonies, while converted heathens were forbidden to observe the rites of heathendom, was in order to show that there is a difference between these rites. For heathenish ceremonial was rejected as absolutely unlawful, and as prohibited by God for all time; whereas the legal ceremonial ceased as being fulfilled through Christ's Passion, being instituted by God as a figure of Christ.

Reply to Objection 2: According to Jerome, Peter withdrew himself from the Gentiles by pretense, in order to avoid giving scandal to the Jews, of whom he was the Apostle. Hence he did not sin at all in acting thus. On the other hand, Paul in like manner made a pretense of blaming him, in order to avoid scandalizing the Gentiles, whose Apostle he was. But Augustine disapproves of this solution: because in the canonical Scripture (viz. Gal. 2:11), wherein we must not hold anything to be false, Paul says that Peter "was to be blamed." Consequently it is true that Peter was at fault: and Paul blamed him in very truth and not with pretense. Peter, however, did not sin, by observing the legal ceremonial for the time being; because this was lawful for him who was a converted Jew. But he did sin by excessive minuteness in the observance of the legal rites lest he should scandalize the Jews, the result being that he gave scandal to the Gentiles.

Reply to Objection 3: Some have held that this prohibition of the apostles is not to be taken literally, but spiritually: namely, that the prohibition of blood signifies the prohibition of murder; the prohibition of things strangled, that of violence and rapine; the prohibition of things offered to idols, that of idolatry; while fornication is forbidden as being evil in itself: which opinion they gathered from certain glosses, which expound these prohibitions in a mystical sense. Since, however, murder and rapine were held to be unlawful even by the Gentiles, there would have been no need to give this special commandment to those who were converted to Christ from heathendom. Hence others maintain that those foods were forbidden literally, not to prevent the observance of legal ceremonies, but in order to prevent gluttony. Thus Jerome says on Ezech. 44:31 ("The priest shall not eat of anything that is dead"): "He condemns those priests who from gluttony did not keep these precepts."

But since certain foods are more delicate than these and more conducive to gluttony, there seems no reason why these should have been forbidden more than the others.

We must therefore follow the third opinion, and hold that these foods were forbidden literally, not with the purpose of enforcing compliance with the legal ceremonies, but in order to further the union of Gentiles and Jews living side by side. Because blood and things strangled were loathsome to the Jews by ancient custom; while the Jews might have suspected the Gentiles of relapse into idolatry if the latter had partaken of things offered to idols. Hence these things were prohibited for the time being, during which the Gentiles and Jews were to become united together. But as time went on, with the lapse of the cause, the effect lapsed also, when the truth of the Gospel teaching was divulged, wherein Our Lord taught that "not that which entereth into the mouth defileth a man" (Mat. 15:11); and that "nothing is to be rejected that is received with thanksgiving" (1 Tim. 4:4). With regard to fornication a special prohibition was made, because the Gentiles did not hold it to be sinful.

OF THE JUDICIAL PRECEPTS (FOUR ARTICLES)

We must now consider the judicial precepts: and first of all we shall consider them in general; in the second place we shall consider their reasons. Under the first head there are four points of inquiry:

(1) What is meant by the judicial precepts?

(2) Whether they are figurative?

(3) Their duration;

(4) Their division.

Whether the judicial precepts were those which directed man in relation to his neighbor?

Objection 1: It would seem that the judicial precepts were not those which directed man in his relations to his neighbor. For judicial precepts take their name from "judgment." But there are many things that direct man as to his neighbor, which are not subordinate to judgment. Therefore the judicial precepts were not those which directed man in his relations to his neighbor.

Objection 2: Further, the judicial precepts are distinct from the moral precepts, as stated above (Q[99], A[4]). But there are many moral precepts which direct man as to his neighbor: as is evidently the case with the seven precepts of the second table. Therefore the judicial precepts are not so called from directing man as to his neighbor.

Objection 3: Further, as the ceremonial precepts relate to God, so do the judicial precepts relate to one's neighbor, as stated above (Q[99], A[4]; Q[101], A[1]). But among the ceremonial precepts there are some which concern man himself, such as observances in matter of food and apparel, of which we have already spoken (Q[102], A[6], ad 1,6). Therefore the judicial precepts are not so called from directing man as to his neighbor.

On the contrary, It is reckoned (Ezech. 18:8) among other works of a good and just man, that "he hath executed true judgment between man and man." But judicial precepts are so called from "judgment." Therefore it seems that the judicial precepts were those which directed the relations between man and man.

I answer that, As is evident from what we have stated above (Q[95], A[2] ; Q[99], A[4]), in every law, some precepts derive their binding force from the dictate of reason itself, because natural

reason dictates that something ought to be done or to be avoided. These are called "moral" precepts: since human morals are based on reason. At the same time there are other precepts which derive their binding force, not from the very dictate of reason (because, considered in themselves, they do not imply an obligation of something due or undue); but from some institution, Divine or human: and such are certain determinations of the moral precepts. When therefore the moral precepts are fixed by Divine institution in matters relating to man's subordination to God, they are called "ceremonial" precepts: but when they refer to man's relations to other men, they are called "judicial" precepts. Hence there are two conditions attached to the judicial precepts: viz. first, that they refer to man's relations to other men; secondly, that they derive their binding force not from reason alone, but in virtue of their institution.

Reply to Objection 1: Judgments emanate through the official pronouncement of certain men who are at the head of affairs, and in whom the judicial power is vested. Now it belongs to those who are at the head of affairs to regulate not only litigious matters, but also voluntary contracts which are concluded between man and man, and whatever matters concern the community at large and the government thereof. Consequently the judicial precepts are not only those which concern actions at law; but also all those that are directed to the ordering of one man in relation to another, which ordering is subject to the direction of the sovereign as supreme judge.

Reply to Objection 2: This argument holds in respect of those precepts which direct man in his relations to his neighbor, and derive their binding force from the mere dictate of reason.

Reply to Objection 3: Even in those precepts which direct us to God, some are moral precepts, which the reason itself dictates when it is quickened by faith; such as that God is to be loved and worshipped. There are also ceremonial precepts, which have no binding force except in virtue of their Divine institution. Now God is concerned not only with the sacrifices that are offered to Him, but also with whatever relates to the fitness of those who offer sacrifices to Him and worship Him. Because men are ordained to God as to their end; wherefore it concerns God and, consequently, is a matter of ceremonial precept, that man should show some fitness for the divine worship. On the other hand, man is not ordained to his neighbor as to his end, so as to need to be disposed in himself with regard to his neighbor, for such is the relationship of a slave to his master, since a slave "is his master's in all that he is," as the Philosopher says (Polit. i, 2). Hence there are no judicial precepts ordaining man in himself; all such precepts are moral: because the reason, which is the principal in moral matters, holds the same position, in man, with regard to things that concern him, as a prince or judge holds in the state. Nevertheless we must take note that, since the relations of man to his neighbor are more subject to reason than the relations of man to God, there are more precepts whereby man is directed in his relations to his neighbor, than whereby he is directed to God. For the same reason there had to be more ceremonial than judicial precepts in the Law.

Whether the judicial precepts were figurative?

Objection 1: It would seem that the judicial precepts were not figurative. Because it seems proper to the ceremonial precepts to be instituted as figures of something else. Therefore, if the judicial precepts are figurative, there will be no difference between the judicial and ceremonial precepts.